

BAVISETTI KAMESWARA RAO v. STATE OF A.P.

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**(2008) 15 Supreme Court Cases 725**

(BEFORE S.B. SINHA AND V.S. SIRPURKAR, JJ.)

*a* BAVISETTI KAMESWARA RAO ALIAS BABAI . . Appellant;

*Versus*

STATE OF ANDHRA PRADESH REPRESENTED

BY ITS PUBLIC PROSECUTOR, HIGH COURT OF

ANDHRA PRADESH, HYDERABAD . . Respondent.

*b* Criminal Appeal No. 547 of 2008<sup>†</sup>, decided on March 25, 2008

*c* A. Penal Code, 1860 — S. 302 or S. 304 Pt. I/Pt. II — Single injury inflicted with savage force on vital part of the body with a long screwdriver having sharp end, penetrating 12 cm deep in the body cutting liver and spleen — Held, this was a case where the act was done with intention of causing bodily injury and the bodily injury intended to be inflicted was sufficient in the ordinary course of nature to cause death, covered by clause “Thirdly” of S. 300 IPC and would, therefore, clearly come within the definition of “murder” — Neither authorship of injury disputed, nor the manner in which the injury was inflicted — Hence, even if a single injury was caused, it was with such a force and on such vital part of the body that it caused almost instantaneous death — Deceased after he was injured went up to the police station and before he could be reached to the hospital, he  
*d* breathed his last — Merely because the screwdriver was a usual tool used by the accused in his business, it could not be as if its user would be innocuous — Moreover, deceased was unarmed and there was a heated exchange of words before the incident and after the incident also the deceased was chased — Besides, the deceased also suffered other injuries — Hence, applicability of S. 304 Pt. II ruled out — As far as applicability of S. 304 Pt. I is concerned, there was no grave and sudden provocation on the part of the  
*e* deceased, nor was it a case of sudden fight in the heat of passion, nor was it a case of sudden quarrel and without the offender having taken undue advantage or acted in a cruel or unusual manner — There was a previous altercation and the accused persons were seething in anger to take revenge for the incident which had taken place earlier — Further, it was only after the deceased came in front of the shop of the accused on his motorbike, first  
*f* there was an exchange of abuses and it was then that the incident took place where not only the accused but even the second accused was proved to have attacked the deceased — Therefore, question of application of S. 304 Pt. I also ruled out — Appellant-accused rightly convicted under S. 302 by courts below (Paras 4, 5, 11 to 13 and 16 to 18)

*g* B. Penal Code, 1860 — S. 302 or S. 304 — Murder trial — Appreciation of evidence — Single injury — Submission that the offence would invariably be covered under S. 304 Pt. II — Held, nature of offence where there is a single injury could not be decided merely on the basis of the single injury and thus in a mechanical fashion — Nature of the offence would certainly depend upon the other attendant circumstances which would help the court to find out definitely about the intention on the part of the accused, they

*h* <sup>†</sup> Arising out of SLP (Crl.) No. 6903 of 2007. From the Final Judgment and Order dated 26-2-2007 of the High Court of Judicature at Andhra Pradesh at Hyderabad in Crl. A. No. 567 of 2005

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**being (i) whether the act was premeditated; (ii) the nature of weapon used; (iii) the nature of assault on the accused — Further held, this was not an exhaustive list and every case has to necessarily depend upon the evidence available** a

**(Para 13)**

*State of Karnataka v. Vedanayagam*, (1995) 1 SCC 326 : 1995 SCC (Cri) 231; *Virsa Singh v. State of Punjab*, AIR 1958 SC 465; *Jagrup Singh v. State of Haryana*, (1981) 3 SCC 616 : 1981 SCC (Cri) 768, *considered and relied on*

*Tholan v. State of T.N.*, (1984) 2 SCC 133 : 1984 SCC (Cri) 164, *relied on*

Appeal dismissed

P-M/A/37611/SR

Advocates who appeared in this case :

G.V.R. Choudary and K. Shivraj Choudhuri, Advocates, for the Appellant;

Ms D. Bharati Reddy, Advocate, for the Respondent.

**Chronological list of cases cited**

**on page(s)**

1. (1995) 1 SCC 326 : 1995 SCC (Cri) 231, *State of Karnataka v. Vedanayagam* 730a-b, 730c-d, 731c
2. (1984) 2 SCC 133 : 1984 SCC (Cri) 164, *Tholan v. State of T.N.* 731e-f c
3. (1981) 3 SCC 616 : 1981 SCC (Cri) 768, *Jagrup Singh v. State of Haryana* 731c
4. AIR 1958 SC 465, *Virsa Singh v. State of Punjab* 730c, 730c-d, 730e

The Judgment of the Court was delivered by

**V.S. SIRPURKAR, J.—** Leave granted.

2. The appellant, Bavisetti Kameswara Rao, original Accused 1 (A-1) has approached this Court challenging the judgment of the Andhra Pradesh High Court, confirming his conviction (Accused 1) for an offence under Section 302 IPC. d

3. Initially, as many as eight persons were tried by the Additional Sessions Judge (Fast Track Court) for various offences under Sections 147, 148 and 302 read with Section 149 IPC, etc. The allegation is that all the accused persons along with some others formed themselves into an unlawful assembly and in pursuance of the common object of that assembly, they committed murder of one Samudrala Pandu Rangarao @ Rayalam Rangadu. e

4. According to the prosecution, on 28-7-2007, at about 11 p.m., the deceased along with his friend Tamarapalli Subba Rao had visited mini lorry supply office of the first accused and he wanted to consume alcohol there. The first accused refused to let him have the alcohol there and on this, there was a wordy altercation between the first accused and the deceased, and they also had a physical altercation with each other and in this melee, the first accused had sustained a wound on his hand. They were pacified by the people gathered there and at that juncture, both the first accused as well as the deceased swore on each other's lives. The prosecution alleged that in pursuance of this, the first accused had a discussion with the second accused and with the other seven accused persons and hatched up a plan to do away the deceased and were waiting for an opportunity. f g

5. On 30-7-2000, all the accused formed into an unlawful assembly in the mini lorry office of the first accused at about 10 p.m. in pursuance of their preplan. The first accused was armed with a screwdriver and the second h

- accused had a penknife. At around 10.30 p.m. on that day, the deceased came there on his Yamaha motorcycle bearing Registration No. AP 37 A 7569 and
- a on seeing the deceased, A-1 and A-2 abused him filthily. When the deceased questioned their behaviour, A-1 and A-2 in pursuance of their intention, attacked the deceased with their weapons, wherein, the first accused stabbed the deceased below the left side of the chest with a screwdriver causing him a deep bleeding injury. A-2 also attacked the deceased with his penknife, but the deceased tried to protect himself. However, the deceased suffered two
- b incised wounds on his palm.

6. It was the further case of the prosecution that the other accused persons also attacked the deceased and assaulted him with hands. The deceased somehow or the other, escaped when he was given a hot chase by all the accused. The deceased straightaway went to Bhimavaram II Town Police Station and reported the matter to the Sub-Inspector of Police on duty,
- c Shri K.V.N. Vara Prasad, LW 23. Since the deceased required immediate medical help, he was tried to be taken to Government Hospital, Bhimavaram. However, on the way itself, the deceased breathed his last. Accordingly, an offence under Section 302 read with Section 34 was recorded vide Crime No. 97/2000 by LW 23. The investigations started and the accused came to be
- d rounded up and on completion of the investigations, a charge-sheet was filed against as many as eight accused persons, who were tried before the Additional Sessions Judge (Fast Track Court), Bhimavaram. The Additional Sessions Judge at Bhimavaram, however, convicted only A-1 and A-2 and convicted both of them for the offence under Section 302 while acquitting the rest of the accused persons. Both of them were sentenced to suffer rigorous imprisonment for life and also to pay fine of Rs 4000, in default to suffer a
- e further imprisonment for one year.

7. On appeal, however, the conviction of the appellant (herein) was confirmed for an offence under Section 302 but A-2 was acquitted of that offence and was convicted for an offence under Section 324 and his sentence was brought down to rigorous imprisonment for two years. It is this appellate
- f judgment, which has been challenged before us. This Court, however, on 15-1-2008 issued a notice confined to the question of sentence. As the appeal was delayed, a notice was also sent on delay. Considering the circumstances under which the appeal was filed, we condone the delay.

8. Insofar as the first appellant-accused Bavisetti Kameswara Rao is concerned, the learned counsel urged before us that this was a case of single
- g injury, that too, the weapon used was a screwdriver which was in the regular use of the accused as a tool, the appellant-accused being a motor mechanic. It was but natural that he would use the said screwdriver in the regular course of his occupation and since he had not used any other weapon, it could not be said that his intention was to cause death of the deceased or also to cause
- h such bodily injury as would be sufficient to cause death of the deceased. The learned counsel for the accused submitted that it was only a single injury and,

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therefore, even if in the knowledge of the accused that such injury was likely to cause the death of the deceased, the offence at the most would be under Section 304 Part II IPC. As an alternative argument, the learned counsel a contended that at the most this was a sudden quarrel and the altercation took place without a preplan. As such, the offence at the most could have been under Section 304 Part I and, therefore, the High Court and the trial court were not justified in convicting the accused for an offence under Section 302 and sentencing him to suffer rigorous imprisonment for life.

9. We have given very deep consideration to the contentions raised. It is b found from the medical evidence that the deceased suffered the following injuries at the hand of the accused. The injuries have been proved by PW 15, D. Varahalaraju, who was himself a civil surgeon. He had conducted the post-mortem and examination of the dead body of the deceased and found the following injuries:

1. An incised wound on lateral aspect of left palm 2 cm x ½ cm x 2 c  
cm, black in colour.

2. An incised wound above Wound 1 on lateral aspect of left palm, 2  
cm x ½ cm x 2 cm, black in colour.

3. An incised wound on epigastric region of abdomen just below  
xiphisternum 2 cm x 1 cm x 12 cm (length, breadth, depth respectively). d

4. An abrasion on right of upper arm above elbow joint 5 cm x 4 cm,  
black in colour.

5. An abrasion on medial aspect of left leg, 2 cm x ½ cm, black in  
colour.

6. Another abrasion on front of left leg, 1 cm x ½ cm, black in colour.

*Internal examination:* e

Head — Brain pale,

Neck — hyoid bone intact, thyroid cartilage-NAD.

Thorax — Lungs — both lungs pale.

Heart — Chambers empty, pale.

Abdomen — Liver — an incised wound on left lobe of liver 3 cm x 2  
cm x 3 cm, pale. f

Spleen — An incised wound on medial aspect of spleen, 3 cm x 2 cm  
x 2 cm, pale.

Kidneys — Both kidneys pale.

Stomach — Empty.

Bladder—Above 200 ml of urine present in bladder, above 900 ml of  
fluid blood present in abdominal cavity. g

10. According to the doctor, the post-mortem was done on 31-7-2000 and was completed on that day at 3.15 p.m. He gave opinion that the deceased had died of haemorrhagic shock due to injuries to liver and spleen. A glance at these injuries would suggest that it was Injury 3 which was fatal injury and it was in the region of abdomen which was a vital part of the body of the h deceased. The injury was 1 cm x 1 cm x 12 cm (length, breadth and depth

- respectively). In the internal examination, it was found that there was an incised wound on liver as well as spleen. The incised wound on liver was 3 cm x 2 cm x 3 cm in measurement, while on the spleen, the measure of the injury was 3 cm x 2 cm x 2 cm. There is hardly any cross-examination of this doctor excepting that Injuries 5 and 6 could be possible by a fall, however, the seriousness of Injury 3 was not and could not be questioned in the cross-examination. We have, therefore, no doubt that this injury with depth of 12 cm was sufficient to cause the death. We also cannot ignore that the screwdriver used had a sharp end and was of sufficient length to cause the injury having the depth of 12 cm. It was, therefore, clear that the eyewitnesses have attributed this injury to the first appellant-accused and there could be no other intention, excepting to cause death.

11. When the screwdriver was plunged into the vital part of the body of the deceased, it cut his liver and spleen. Therefore, this was a case where the act was done with intention of causing bodily injury and the bodily injury intended to be inflicted was sufficient in the ordinary course of nature to cause death, covered by clause “Thirdly” of Section 300 of the Penal Code, 1860. The act of the appellant-accused would, therefore, clearly come within the definition of “murder” under Section 300 of the Penal Code.

12. We cannot forget that when the deceased came up to the office of the accused, there was exchange of abuses and then, he was thrashed by the accused persons. There is hardly any cross-examination of the eyewitnesses to dispute the authorship of this particular injury. We have scanned the evidence very closely only to find out that the authorship of the injury could not be disputed and nor the manner in which the single injury was inflicted. Therefore, under the circumstances, even if there was a single injury caused, it was with such a force and on such vital part of the body that it caused almost instantaneous death. The deceased, after he was injured went up to the police station and before he could be reached to the hospital, he breathed his last.

13. It is seen that where in the murder case there is only a single injury, there is always a tendency to advance an argument that the offence would invariably be covered under Section 304 Part II IPC. The nature of offence where there is a single injury could not be decided merely on the basis of the single injury and thus in a mechanical fashion. The nature of the offence would certainly depend upon the other attendant circumstances which would help the court to find out definitely about the intention on the part of the accused. Such attendant circumstances could be very many, they being (i) whether the act was premeditated; (ii) the nature of weapon used; (iii) the nature of assault on the accused. This is certainly not an exhaustive list and every case has to necessarily depend upon the evidence available. As regards the user of screwdriver, the learned counsel urged that it was only an accidental use on the spur of the moment and, therefore, there could be no intention to either cause death or cause such bodily injury as would be

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sufficient to cause death. Merely because the screwdriver was a usual tool used by the accused in his business, it could not be as if its user would be innocuous.

14. In *State of Karnataka v. Vedanayagam*<sup>1</sup> this Court considered the usual argument of a single injury not being sufficient to invite a conviction under Section 302 IPC. In that case the injury was caused by a knife. The medical evidence supported the version of the prosecution that the injury was sufficient, in the ordinary course of nature to cause death. The High Court had convicted the accused for the offence under Section 304 Part II IPC relying on the fact that there is only a single injury. However, after a detailed discussion regarding the nature of injury, the part of the body chosen by the accused to inflict the same and other attendant circumstances and after discussing clause Thirdly of Section 300 IPC and further relying on the decision in *Virsa Singh v. State of Punjab*<sup>2</sup>, the Court set aside the acquittal under Section 302 IPC and convicted the accused for that offence. The Court (in *Vedanayagam case*<sup>1</sup>, SCC p. 330, para 4) relied on the observation by Bose, J. in *Virsa Singh case*<sup>2</sup> to suggest that: (*Virsa Singh case*<sup>2</sup>, AIR p. 468, para 16)

“16. ... With due respect to the learned Judge he has linked up the intent required with the seriousness of the injury, and that, as we have shown, is not what the section requires. The two matters are quite separate and distinct, though the evidence about them may sometimes overlap.”

The further observation in the above case were: (*Virsa Singh case*<sup>2</sup>, AIR p. 468, paras 16 & 17)

“16. ... The question is not whether the prisoner intended to inflict a serious injury or a trivial one but whether he intended to inflict the injury that is proved to be present. If he can show that he did not, or if the totality of the circumstances justify such an inference, then, of course, the intent that the section requires is not proved. But if there is nothing beyond the injury and the fact that the appellant inflicted it, the only possible inference is that he intended to inflict it. Whether he knew of its seriousness, or intended serious consequences, is neither here nor there. *The question, so far as the intention is concerned, is not whether he intended to kill, or to inflict an injury of a particular degree of seriousness, but whether he intended to inflict the injury in question; and once the existence of the injury is proved the intention to cause it will be presumed unless the evidence or the circumstances warrant an opposite conclusion.* But whether the intention is there or not is one of fact and not one of law. Whether the wound is serious or otherwise, and if serious, how serious, is a totally separate and distinct question and has nothing to

<sup>1</sup> (1995) 1 SCC 326 : 1995 SCC (Cri) 231

<sup>2</sup> AIR 1958 SC 465

do with the question whether the prisoner intended to inflict the injury in question.

- a* 17. ... It is true that in a given case the enquiry may be linked up with the seriousness of the injury. For example, if it can be proved, or if the totality of the circumstances justify an inference, that the prisoner only intended a superficial scratch and that by accident his victim stumbled and fell on the sword or spear that was used, then of course the offence is not murder. But that is not because the prisoner did not intend the injury that he intended to inflict to be as serious as it turned out to be but because he did not intend to inflict the injury in question at all. His intention in such a case would be to inflict a totally different injury. The difference is not one of law but one of fact; ...” (emphasis supplied)
- b*

15. Their Lordships (in *Vedanayagam case*<sup>1</sup>, SCC pp. 330-31, para 5) then referred to the decision of this Court in *Jagrup Singh v. State of Haryana*<sup>3</sup> where this Court observed: (*Jagrup Singh case*<sup>3</sup>, SCC pp. 619-20, para 6)
- c*

- “6. *There is no justification for the assertion that the giving of a solitary blow on a vital part of the body resulting the death must always necessarily reduce the offence to culpable homicide not amounting to murder punishable under Section 304 Part II of the Code.* If a man deliberately strikes another on the head with a heavy log of wood or an iron rod or even a *lathi* so as to cause a fracture of the skull, he must, in the absence of any circumstances negating the presumption, be deemed to have intended to cause the death of the victim or such bodily injury as is sufficient to cause death. The whole thing depends upon the intention to cause death, and the case may be covered by either clause Firstly or clause Thirdly. *The nature of intention must be gathered from the kind of weapon used, the part of the body hit, the amount of force employed and the circumstances attendant upon the death.*” (emphasis supplied)
- d*
- e*

Their Lordships also referred to *Tholan v. State of T.N.*<sup>4</sup>

16. In the present case we do not have any reason to take any different view of the matter. Here was the case where a long screwdriver having a sharp end was plunged into the abdomen of the deceased with such savage force that it caused injury which was 12 cm deep cutting liver and spleen. This is apart from the fact that the deceased also suffered other injuries. The deceased was unarmed and there was a heated exchange of words before the incident. After the incident also the deceased was chased. Therefore, we find that this is not the case where conviction could be for the offence committed under Section 304 Part II IPC.
- f*
- g*

17. We also do not accept the contention of the learned counsel for the defence which was raised only by way of a desperate argument that the incident was sudden and it was without any premeditation, thereby the learned counsel wanted to bring the evidence under Section 304 Part I. In

*h* 3 (1981) 3 SCC 616 : 1981 SCC (Cri) 768

4 (1984) 2 SCC 133 : 1984 SCC (Cri) 164

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short the counsel aimed at Exception 1 of Section 300 IPC. Exception 4 was also sought to be relied upon. We do not think the evidence available would warrant the offence covered by Exception 1 as there was no such grave and sudden provocation on the part of the deceased. Similarly it was not a case of sudden fight in the heat of passion nor was it a case of sudden quarrel without the offender having taken undue advantage or acted in a cruel or unusual manner. There is evidence on record to suggest that there was a previous altercation and the accused persons were seething in anger to take the revenge of the incident which had taken place on 27th of the same month. Further, it was only after the deceased came in front of the shop of the accused on his motorbike, first there was an exchange of abuses and it was then that the incident took place where not only the accused but even the second accused is proved to have attacked the deceased. This could not, therefore, be a case of a sudden fight. Therefore, the question of application of Section 304 Part I is also ruled out.

18. Under the circumstances, we would be constrained to hold that the courts below were right in convicting this appellant-accused for an offence under Section 302. We, therefore, find no reason to take any different view and confirm the conviction and sentence of this accused also.

19. In the result, the appeal has no merits, and it is dismissed.

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(BEFORE DR. ARIJIT PASAYAT AND H.S. BEDI, JJ.)

STATE REPRESENTED BY INSPECTOR OF POLICE,  
TIRUCHY

.. Appellant; e

*Versus*

RETTAIMANDAIYAN ALIAS MURUGAN

.. Respondent.

Criminal Appeals No. 656 of 2002<sup>†</sup> with No. 742 of 2003,  
decided on September 18, 2008

**Criminal Procedure Code, 1973 — S. 386 — Improper exercise of power by High Court — Matter remanded — High Court in appeal filed by respondent-accused against their conviction under S. 302 IPC, by impugned judgment directing their acquittal observing that because the dying declaration was not believable and discarded, evidence of eyewitnesses also should be discarded, without indicating any reason as to what deficiency was there in evidence of eyewitnesses — Matter remitted to High Court for reconsideration afresh** (Paras 1, 9 and 11)

Appeals partly allowed

P-M/A/39016/SR g

Advocates who appeared in this case :

S. Thananjayan and V.G. Pragasam, Advocates, for the Appellant;  
Subramonium Prasad, Advocate, for the Respondent.

<sup>†</sup> From the Judgment and Final Order dated 12-4-2001 of the High Court of Judicature at Madras in Crl. A. No. 617 of 1994 h